



## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

February 21, 2020

### **POLICE COMMISSIONER'S PENALTY DEPARTMENT**

**Re:** CCRB Case No. 201902829 regarding Sergeant Jose Santory, Tax No. [REDACTED] (DADS No. 2020-21732)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter, including multiple Body Worn Camera videos and other video evidence, and has determined that Sergeant Santory will receive no disciplinary action for the allegation that he threatened an individual with the use of force. Sergeant Santory was supervising other officers while engaged in a car stop with an uncooperative vehicle operator.

After an extended period, a determination was made to remove the uncooperative vehicle operator from his vehicle, and while that difficult process was being undertaken, a civilian approached the officers near the vehicle operator's open door, despite having been directed to remain on the sidewalk multiple times. After the individual failed to comply with multiple directives to get back on the sidewalk, Sergeant Santory turned away from the vehicle operator and confronted the individual who had refused to back away from the officers who were engaged with the vehicle operator. Sergeant Santory can be seen on multiple Body Worn Camera videos holding his Conducted Energy Weapon (C.E.W.) in his hand while he was assisting other officers in removing the vehicle operator. When he turned to address the individual who had refused to back away from the officers, Sergeant Santory still had the C.E.W. in his hand and he chose to utilize the C.E.W. to gain compliance from the individual who, by failing to back away as instructed, posed a potential threat to the officers who were engaged in a physical struggle to remove the vehicle operator from his vehicle.

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Sergeant Santory's use of the C.E.W. as a deterrent successfully diffused a tense situation and was appropriate under the totality of the circumstances. Therefore, Sergeant Santory will receive no disciplinary action in connection with this matter.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Cecil Wade', written over the printed name.

Cecil Wade  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office